

26STCV00686 26STCV00686

County: los-angeles

Division: Civil Law and Motion

Department: 514

Hearing date: 2026-08-18

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Case Number: 26STCV00686 Hearing Date: August 18, 2026 Dept: 514

Vogt v. Prime Healthcare Centinela, LLC

26STCV00686

Plaintiff's Motion to Compel Defendant Gabriel Schmidt to Provide Further Responses
to Requests for Production of Documents (Set One)

Tentative Ruling

The motion is granted in part, denied in
part, and denied as moot in part.

Background

This action arises out of an employment
relationship.

On January 9, 2026, Danielle Vogt
("Plaintiff") filed the complaint in this action against Prime Healthcare
Centinela, LLC ("Centinela"), Prime Healthcare Services, Inc. ("PHSI"), Gabriel
Schmidt ("Schmidt"), and Does 1 through 10, asserting causes of action for: (1)
sexual harassment in violation of the Fair Employment and Housing Act (the
"FEHA"); (2) retaliation in violation of Labor Code sections 1102.5, et
seq.; (3) retaliation in violation of the FEHA, (4) violation of Labor Code
section 232.5; (5) violation of Labor Code section 98.6; (6) wrongful
termination in violation of public policy; (7) failure to prevent and/or remedy
harassment and retaliation in violation of the FEHA; and (8) negligent hiring,
supervision, and retention of employee.

On March 10, 2026, Defendant Centinela filed an answer to the complaint.

On March 11, 2026, Defendant PHSI filed an answer to the complaint.

On April 3, 2026, Defendant Schmidt filed an answer to the complaint.

On July 13, 2026, Plaintiff filed this motion to compel Defendant Schmidt to provide further responses to Request for Production of Documents (Set One). Plaintiff does not seek sanctions.

Defendant Schmidt filed an opposition on August 5, and Plaintiff filed a reply on August 11.

Trial is set for March 20, 2028.

Legal Standard

“On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) A statement of compliance with the demand is incomplete. (2) A representation of inability to comply is inadequate, incomplete, or evasive. (3) An objection in the response is without merit or too general.” (Code Civ. Proc., § 2031.310, subd. (a).)

Notice of a motion to compel further responses must be given “within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing.” (Id., subd. (c).)

A motion to compel further responses must set forth specific facts showing good cause for the discovery and must be accompanied by a meet-and-confer declaration and a separate statement or, in the discretion of the Court, a

“concise outline of the discovery request and each response in dispute.” (Id., subd. (b)(1)-(3); Cal. Rules of Court, rule 3.1345.)

“[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (h).)

In Chapter 7 of the Civil Discovery Act, Code of Civil Procedure section 2023.030, subdivision (a) provides, in pertinent part, that the court may impose a monetary sanction ordering that any person “engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” A “misuse of the discovery process” includes (among other things) failing to respond or to submit to an authorized method of discovery; making, without substantial justification, an unmeritorious objection to discovery; making an evasive response to a discovery request; disobeying a court order to provide discovery; and making or opposing, unsuccessfully, a motion to compel without substantial justification. (Code Civ. Proc., § 2023.010, subds. (d)-(h).)

Discussion

Plaintiff moves to compel Defendant Schmidt to provide further responses to Requests for Production (Set One) Nos. 1-15 and 17.

On March 24, 2026, Plaintiff served the discovery at issue. (Hernandez Decl., ¶ 2.) On May 28, 2026, Defendant served verified responses. (Id., ¶ 3.) Defendant failed to produce any documents with his response. (Id., ¶ 4.) On May 29 and June 16, 2026, Plaintiff’s counsel sent meet and confer letters. (Id., ¶¶ 5-6.) On June 19, 2026, counsel met and conferred by telephone. (Reply Hernandez Decl., ¶ 2.)

As set forth in Plaintiff’s reply, while the motion was pending the parties resolved the issues

relating to Requests Nos. 3-15. Accordingly,
the motion is denied as moot as to these requests.

That leaves
Requests Nos. 1-2 and 17.

Requests
Nos. 1-2.

The objections
of Defendant Schmidt are overruled.

The motion is
granted. Defendant Schmidt is ordered to
provide a code compliant response, without objections, to the requests. A statement that the responding party will
produce “responsive, nonprivileged documents” is not code compliant, as it is
evasive and leaves the propounding party to guess regarding whether any
documents have been withheld on the basis of any privilege.

If Schmidt
withholds any document on the basis of privilege, Schmidt must prepare and
serve a privilege log that meets all applicable legal requirements.

Request
No. 17.

The Court
declines to rule on Schmidt’s objections, as they appear to be entirely
theoretical in nature. The Court does
not render advisory opinions regarding whether documents, if they did exist and
were within the possession, custody, or control of the responding party, might
be discoverable.

The motion is denied. The statement of an inability to comply in
the Amended Response served on or about August 5 is code compliant. (See Code Civ. Proc., § 2031.230.)

Conclusion

The Court GRANTS
IN PART, DENIES IN PART, and DENIES AS MOOT IN PART the motion of Plaintiff

Danielle Vogt to compel Defendant Gabriel Schmidt to provide further responses to requests for production.

The Court GRANTS
the motion as to Requests for Production Nos. 1-2.

The Court ORDERS
Defendant Schmidt to serve verified, code compliant responses to Requests Nos. 1-2, without objections, by no later than September 1, 2026.

The Court DENIES
AS MOOT the motion as to Requests for Production Nos. 3-15.

The Court DENIES
the motion as to Request for Production No. 17.

Moving Party is ORDERED to give notice.